



CANDIDATE

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TEST

Theory of Politics- Hilary 25

Subject code	--
Evaluation type	--
Test opening time	17.01.2025 14:00
End time	17.01.2025 17:15
Grade deadline	--
PDF created	20.01.2025 16:58
Created by	Karen Tome

i Theory of Politics - Hilary 25

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1 Typed Answer 1

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Q11 Can representatives selected by lot ever be 'democratic' representatives?

Introduction

The considerations over whether a political arrangement that selects representatives by lot can be democratic depends on what our definition of democracy is or rather, depends on what we consider fundamental characteristics or unique values to democracy. There are two candidate arguments for whether representatives selected by lot can be democratic. The first is an appeal to pure procedural concerns over fairness, that is, democracy is the fairest procedure possible. The second is an appeal to modern attempts to replicate ideal deliberative conditions, through random selection and having these representatives debate over constitutionalist or legislative concerns.

I am going to reject that representatives selected by lot can ever be 'democratic' representatives. Crucially, my complaint rests on the link between liberty and democracy, namely that democracy is the only political arrangement that allows for republican liberty through contestation. My argument proceeds in three stages. First, I show that the first candidate argument fails because the value of fairness is merely occasional and thin, and is not unique to democracy. In turn, I follow Estlund in supporting the idea that we need procedure independent values to justify democratic authority. Second, I show that Estlund's idea of equating democracy as merely the best epistemic device that is acceptable to all qualified points of view fails to discharge the second argument because the second argument appeals to the notion of an ideal deliberative democracy. Lastly, I contend that the second candidate argument that appeals to ideal deliberative democracy is inconsistent with the defining value of democracy itself -- that of securing republican freedom -- because selection by lot insulates representatives from challenge and contestation. This link between democracy and republican, I show, is general to both deliberative and aggregative democracies.

Fairness: A thin and Occasional Value

Let us consider the first argument: that democracy is defined by its procedural fairness and since representatives being selected by lot is perhaps the most fair form of selection, it is democratic in this way. This appeal can be strengthened by considering Cohen's own idea of why democracy is valuable -- that it "mirrors the Original Position" and the structure of fair bargaining and the exchange of ideas and reasons. I have two challenges to this argument. The first is that the idea of fairness utilised by selection by lot -- that of randomness -- is not the same intuitive fairness that we value as seen in Cohen's description of what makes democracy valuable. Let us consider the way in which random selection is fair -- it is fair in the sense that it gives everyone an equal chance for their voice to dictate what policy would emerge. But this is not the sense of fairness that we appeal to. A contrast with majority rule is in order: suppose that there is a 60/40 split for policy X and Y. Random selection would yield X 60 percent of the time while Y 40 percent of the time while majority rule would always support X. The way in which majority rule is fair is that it gives everyone the same sway in the vote, not that it gives everyone an equal chance for their voice to dictate what policy would emerge. The former conception of fairness is what appeals to us -- so, the fairness that emerges from random selection is quite thin. The second objection is that from Estlund's argument that we need to appeal to procedure-independent standards or what he calls a "minimalist conception of truth". I think this is most clear when we consider Cohen's own idea of why democracy needs to begin from the original position which is considered "fair". The reason for this is that when we have a fair representation of individuals with no one having outsized influence, we yield an outcome that is oriented towards the common good and in which no one can dictate the outcome. In this sense, what is truly valuable is the fact that what emerges from democratic deliberation is a just outcome (common good). Therefore, fairness is occasional in the sense that it is defeasible by an outcome that reaches the common good. In this sense, the motivation for a fair democratic starting point is animated by concerns over justice -- if we want a just outcome, we need a just (and thus fair) starting point. So, the first candidate argument that democracy is defined by its procedural fairness fails.

Why the second candidate argument is more robust

The second candidate argument follows Cohen's conception of deliberative democracy. Suppose we select random candidates or representatives. Through asymptotic theory, most of the time, we will yield a demographically accurate snapshot of society. A demographically accurate snapshot of society is fundamental to achieving a just outcome that represents the common good, given that individuals would bring in their own diverse perspectives acceptable to all, and that there is almost what Pettit calls an 'acceptability game' that accurately reflects the plurality of values that society has. This, I suggest, is robust against Estlund's argument that appeals to the procedure independent standard of minimal truth -- given that we have a demographically correct description of society, we yield much of the epistemic benefits that democracy grants us. It is also prima facie acceptable to all qualified points of view, given that it does not give any person or subgroup an outsized influence that would skew the result. The second candidate argument is also more robust because it is what modern day democracies are trying to do in order to capture ideal deliberative democracy. For example, Lander~~m~~ore highlights how the Icelandic Constitution was given to a randomly selected group of people in order to update it. Likewise, in British Columbia, there are attempts for state-sponsored national forums comprised of randomly selected individuals. The reason why this argument is more appealing, I argue, is because it attempts to tease out the jury analogy to democracy -- something that Estlund tries to make. The jury is also a congregation of non-expert individuals to make an important decision over someone's life. For the epistemic reasons and acceptability reasons that the jury fulfils in not importing any biases and having a diverse set of opinions, we think that democratic authority also appeals to the same sort of justification that jury authority appeals to. Therefore, the second candidate does not draw out its value primarily from random selection, but its value from what random selection implies and prima facie makes intricate contact with democracy.

Liberty as defining for democracy

Now, I am going to reject this second candidate argument. But before this, I need to set out why I think liberty, out of all values, is defining for democracy. The main argument for why liberty is defining for democracy is motivated by Barry's observation that the reason why we think judgements from majority rule is valuable is precisely because it secures prior rights that we think are valuable. The problem with Barry's argument is that if such prior rights are why democracy is valuable, it is most definitely not defining for democracy because it is not unique for democracy to secure such rights. Consider Berlin's argument that these Millian/negative conception of liberty is compatible with the benevolent despot, which is antithetical to democracy. What I think is defining for democracy is that it achieves a distinctly political conception of liberty -- that of republican freedom. Pettit defines republican freedom as being free from the subjection to arbitrary interference. Later on, he tightens the definition to simply 'uncontrolled' interference. Pettit's definition is motivated from the republican idea that the people under a good set of laws remains free, even though it quantitatively reduces the number of rights people has. What then is uncontrolled interference? Gaedeke highlights that it is interference that is structurally constituted by legal norms and institutions, because such structurally constituted legal norms negates the status of 'conversable and discursive' beings that Pettit is trying to capture. Notice then, the intimate connection between the idea of a contestatory democracy and republican freedom. As Pettit highlights, only when individuals are able to contest and challenge the laws that are created, thereby constraining these laws, can they secure republican freedom. This requires a contestatory democracy and can only be achieved within this framework, and cannot be achieved by any other political arrangement. One might argue that the sort of defining value I ascribe to democracy privileges a certain variant of democracy -- that of deliberation. After all, Gaedeke identifies contestation and controlling the laws with the existence of reasons and challenges exchanged amongst the people and the state, which is reminiscent of deliberative democracy. I reject this complaint because even if we consider aggregative models of democracy such as Mouffe's, we notice that these aggregative models still require an 'ethico-political framework' which she calls the 'republica' that is a framework of shared values and concerns because the

function of democracy is to transform these 'antagonisms' into 'agonisms' and to turn our conception of our enemies as people 'to be destroyed' into adversaries whose 'existence we tolerate and struggle against'. In short, Mouffe also thinks that the function of aggregative democracy is to prevent domination or uncontrolled liberty.

Now that I have shown, generally, that liberty in the republican sense is defining for democracy, we can consider how this rejects the second candidate argument. Notice that if we select representatives by lot, these representatives are not answerable to the people as they are via elections. Nothing will happen to them (if we think of a normal society with proper civility) and they have no incentive to actually account for potential challenges that occur. Because of such insulation from contestation outside the sphere of representatives, individuals are subject to unconstrained interference, because they are powerless to influence the democratic outcome. One might argue that such individuals may consider reasons that reflect everyone's preferences -- but even if this is extensionally similar, the thrust of republican freedom is the intension -- that it is (i) not the mere fact of someone's disposition and goodwill that I am not being interfered with and (ii) that I am capable of influencing the rules that govern me myself. Random selection and its accompanying insulating effect negates the status of being free for many, a status that is crucial to identifying a society as democratic.

Conclusion

In conclusion, I have set out and rejected two candidate arguments for why random selection of representatives might be democratic. The first argument is impoverished because it relies solely on an unintuitive conception of fairness that most democracies do not appeal to. The second argument, which I consider significantly stronger, fails to realise the crucial and defining value of republican liberty for democracy, and thus cannot justify the authority of randomly selected individuals (if they even possess any authority), as democratically legitimate.

Words: 1814

Answered.

2 Typed Answer 2

Type your answer below

Q3. How should we understand the term 'civil' in 'civil disobedience'?

Introduction

In most theories of civil disobedience, civility in civil disobedience is associated with the following characteristics: sincerity and conscientiousness, being political in nature, being public in nature and most importantly, being non-violent. These characteristics set it apart from mere law-breaking. The first three aspects of civility in civil disobedience are largely uncontroversial. Therefore, my focus is going to be on discussing whether we can understand civility in a way that includes violence, and what limitations come into this definition.

I am going to argue that we can in fact understand civility in a way that includes violence, but only in its non-coercive form. This is clear after we really understand what goes behind the notion of civility that is not often defined in the literature. My argument proceeds in three steps. First, I investigate the underpinnings of what civility is -- namely, a notion of citizenship and civic friendship to facilitate democratic exchange. It is from this understanding of civility that the ideas of being conscientious, public and political so readily follow. Second, I argue that Rawls' notion that civil disobedience must be non-violent due to a fidelity to the law is based on an impoverished and erroneous reading of the civil rights movement as democratic exemplarity and heroism. In essence, civility does not imply non-violence. Lastly, I contend that once we consider how violence can be mechanisms of democratic repair, we reach the conclusion that violence can be civil thus construed, while emphasising on the limitation that it must remain non-coercive.

What is Civility?

We must first investigate the theoretical backdrop of civility. Here, I appeal to Allen's work on democratic citizenship and political friendship. Civility emerges from the idea of what it takes for a society of individuals to interact harmoniously with one another. This is motivated by the Aristotelian conception of individuals

as 'political animals' which Nussbaum claims makes crucial the network of relations in which we are situated in crucial to our flourishing. In this sense, civility is basically an idea of citizenship -- it asks what are the obligations of citizens to one another and its corresponding limits. In turn, Allen answers this question through an analogy with friendship -- friends 'share the benefits and burdens roughly equally' with one another over time. More generally, I suggest that what Allen is getting at is that civility is a sense of reciprocity that democracy requires to function. It is the ability to accept that sacrifice is an inevitable democratic fact, and that because of reciprocity, we honour such sacrifices and make a conscientious commitment to repaying this sacrifice in the future.

Summarised, civility is an idea of citizenship that undergirded by reciprocity amongst equals, because it is the only way to sustain our network of relations within a democratic context, one rife with sacrifice and loss.

To pre-empt the plausibility of this reading of civility, I argue this is why the three uncontroversial aspects of civility: publicity, political-ness and conscientiousness so readily follow. Civil disobedience, in order to signify this reciprocity and desire to sustain the democratic network in which we flourish, requires us to truly be serious and consistent about our beliefs over what serious injustices have occurred, and be intent on persuading individuals about these injustices that our community has faced. Friendship and reciprocity is antithetical to being disingenuous. This is also why our message that we convey through civil disobedience must be political in content -- it must demonstrate concern for the common good and of legislative policy. It cannot merely be an idiosyncratic concern that I have, but rather one that is embedded in policy. After all, Walzer observes that civil disobedience often takes the form of a law that conflicts with "our" convictions rather than an appeal to simply "my" convictions. Publicity therefore follows also because we want to give what Rawls calls 'fair notice' to everyone -- since our goal is to persuade our fellow citizens, we want to let everyone know the grievances the community has faced.

The Impoverishment of Rawls' theory of civil disobedience

Now, I am going to argue that Rawls' restriction of civil disobedience to only include non-violent action is unduly narrow, especially since I will show that it does not follow from the analysis of civility that we have done thus far. Rawls seemingly has two arguments that leverages conceptions of political obligations to justify our 'fidelity to the law'. The first is one of natural duty -- he argues that we have a 'natural duty to further just institutions'. The second is one of 'fair play' and an appeal to mutual advantage via his principle of fairness in which he states that insofar as we have reaped the benefits of just institutions, we are obliged to continue furthering and supporting these institutions. An immediate concern is whether Rawls' theory is ever relevant since it is only applicable to 'near-just' societies whereby the institutions are just, but there is still a serious infringement of justice. It seems that there are no such kinds of 'near-just' societies -- if there is a serious infringement of justice that is recalcitrant, then any near-just society should have the political mechanisms to correct for such infringements. This problem is accentuated once we realise that the event Rawls based his theory on -- the civil rights movement -- was not situated in a society that is 'near-just'. It had severe failings in terms of giving people fewer rights and being democratically exclusionary.

However, let us assume Rawls' theory is applicable to some societies. It is not so clear that the reciprocity that civility demands implies non-violence. Consider the Civil Rights movement. In the Civil Rights movement, there is a clear case of democratic loss. Individuals are suffering at the hands of lynch mobs and are deprived of their fundamental democratic rights -- LeBron argued how the Jim Crow Laws deprived such individuals of their ability to be 'coproducers of democracy' and their ability to renegotiate their status. Yet, it seems deeply unfair to demand that the same individuals who have faced recalcitrant injustices should continue to restrain themselves to fit liberal norms on what is acceptable, terms which are by the construction of precisely those who are complicit in their oppression. It is here that I think Rawls' faces two problems when he examined the Civil Rights movement. The first is that he assumed that the Civil Rights movement was non-violent because they felt they were obliged to. Hooker highlights that, contrary to popular belief, the Civil Rights movement remained non-violent for instrumentalist concerns since they knew that change could only

be affected in a piecemeal fashion. Gandhi also makes a similar instrumentalist case for non-violence -- that the probability of success and consequent societal stability is higher if we use 'soul-force' and passive resistance, as opposed to brute force. What this means is that any demand of non-violence is extremely defeasible, since the appeal of non-violence rests on instrumental grounds. Second and far more importantly, the idea of reciprocity and civility do not imply non-violence. In light of the severe losses that individuals faced in the Civil Rights movement, what reciprocity and thus civility demands is that in order to sustain society, we need to repair the already broken civic bonds, and share the democratic loss fairly amongst others present in society. In fact, civility thus construed as based on reciprocity, seems to suggest the opposite: that we can allow violence because the burden of democratic loss now falls on the other side.

The core problem, I suspect, is that Rawls wrongly reads the democratic exemplarity of the Civil Rights movement as one that is an obligation. I disagree with Hooker that the Civil Rights movement is not an example of democratic heroism and that Rawls' error is a product of his over-romantic imagination of what happened during the Civil Rights movement -- it seems plausible that further sacrifices made on the part of Martin Luther King and his follows are heroic. But it is precisely because they are heroic that they make no claims on the kinds of obligations civil citizens have to one another. There seems to be a gap between the conception of the non-violent Civil rights movement as an example of democratic heroism -- a heroism which is fundamentally supererogatory, to an example of democratic obligation. Therefore, civility and reciprocity, I contend, does not obviously imply that civil disobedience needs to be non-violent. Rawls' reading of civility suffers from a problem of superficiality.

Why Violence can be incorporated into civility

I have thus far made a rather negative argument for why violence can be accepted into civility -- namely, that an understanding of civility as reciprocity does not preclude violence. Now, I am going to argue that once we understand civility as reciprocity in order to sustain our democratic society and network, and realise

that violence can work as a form of democratic repair, that violence can be incorporated into civility.

Let us consider how violence can be a form of democratic repair. Violence, I argue, is a special form of communication. It is the most visceral expression of emotion and of suffering that one has faced. How can an expression of emotion and of suffering have a place in democracy? After all, theorists like Cohen envisage democracy to be an exchange of reasons, and have a tinge of formality and gentlemanliness that violence immediately loses. Yet, Young points out that such theories of democracy overly privilege a certain form of articulateness as the norm. But Young's argument does not yet licence violence, only rhetoric as she suggests. However, in many non-ideal circumstances of democracy, it is often the case that voices are not heard unless a powerful force of expression comes into play. As Lefkowitz highlights, the case for violence rests on 'instrumental concerns' regarding what norms are best for expressing one's ideas in the democratic arena. Once we consider how riots and the like can be a form of democratic repair and admitted as simply a form of democratic communication under unideal circumstances, we can see how it can be incorporated into civility. An analogy with the idea of reciprocal friendship is in order: consider the case whereby your friend, despite many appeals, does not listen to you, and does things to hurt you. Reciprocity and civility does not demand that you simply stay silent or try conventional means. It sometimes demands for you to take extreme forms of communication such as shouting or giving an ultimatum. This, I think, is beyond mere non-violent law breaking -- it is tantamount to destroying governmental property to have your voice heard. This is why, if civility is to be considered reciprocity aimed at sustaining the democratic enterprise, violence must be admitted into a possible aspect of civility.

Let us consider in brief two objections. The first rests on the consideration of unbounded violence -- harm towards fellow citizens. This is why I follow Brownlee in specifying that violence must be non-coercive for disobedience to remain civil since reciprocity also demands that we respect each other as equals with corresponding rights. And this is possible such as through destruction of governmental property. The second rests on considerations of conceptual

stretching -- Delmas thinks that including violence, as Brownlee does, into civil disobedience is to stretch the concept beyond recognition. In turn, she suggests the use of 'principled disobedience' that includes civil and uncivil disobedience. However, I have argued how our broad understanding of civility is compatible with non-coercive violence, and the difference between mine and Delmas' categorisation is quite illusory. To sustain that civility must have a gentlemanly image is to rest on a superficial understanding of civility.

Conclusion

In conclusion, I suggest that my argument takes the inclusion of violence into our understanding of civility much further than Brownlee, who merely states that it is a possible mode of communication. Instead, I have shown that civility is underpinned by a conception of reciprocity among equals aimed at sustaining our democratic society. In turn, because violence can be a form of democratic repair, and it fulfils the demands of reciprocity insofar as it is non-coercive, it can be included in civil disobedience.

Words: 2048

Answered.

3 Typed Answer 3

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Q7. 'Right-libertarians are correct that equality conflicts with self-ownership. But so much the worse for self-ownership.' Discuss.

Introduction

In *Anarchy, State and Utopia*, Nozick argues that the only justifiable state is that of the ultra-minimalist state -- all other functions such as redistributive taxation conflicts with our inviolable right to self-ownership. For Nozick, self-ownership instantiates two stringent rights to full property: (i) a stringent right to the use of our mind, body and property and (ii) a stringent right to the income and benefits we accrue from the use of our property. Nozick thinks that (i) implies (ii). The corollary of this is that whatever emerges from the free market distribution, even if it is extremely unequal, is justified because of self-ownership. As a matter of contingent fact, large inequalities will likely occur due to differential talents that are not adjusted for. And because redistribution violates (ii), it violates our right to self-ownership and therefore self-ownership and equality conflict. At least on Nozick's account.

My eventual argument is going to suggest that Nozick and Right-Libertarians are wrong in suggesting that equality conflicts with self-ownership, because Nozick rests on an impoverished notion of self-ownership that is incongruent with his own Kantian basis. However, for the sake of argument, I am going to first dispute that if Right-Libertarians are correct that equality conflicts with self-ownership, that it is worse for self-ownership, since ex hypotheses, self-ownership is inviolable, and thus self-ownership always has a lexical priority over equality. Second, I am going to consider Otsuka-type responses to the Right-libertarians, namely accompanying self-ownership with a egalitarian proviso. However, I am going to show that such an argument is rife with problems, primarily because it essentially treats the natural assets as a common stock, conflicting with self-ownership. Lastly, I am going to argue that self-ownership cannot be construed as merely formal property rights, but must be something more substantive. In turn, for Nozick's principle of just transfer to ever be

relevant, I argue that minimally, relational equality must be sustained. In essence and surprisingly, equality underwrites self-ownership.

Equality vs Self-ownership: The Right-libertarian account

Let us consider why, if equality conflicts with self-ownership, that it is so much worse for self-ownership. The effective implication of this conditional is that the conflict between equality and self-ownership reveals something fundamentally problematic with self-ownership as an ideal. The strongest argument for this position, I think, is from G. A. Cohen in analysing the implications of Nozick's proviso combined with self-ownership. The intuition emerges from the fact that self-ownership needs to be combined with a principle of just initial acquisition. Nozick calls this the Nozickean proviso: that everyone can acquire a large enough share of initial world resources if and only if it does not make anyone else worse off than if it were under general use. In response, Cohen launches a creative counter-example. Suppose that if a plot of land were under general use, A and B would both earn q amount of money. Let us assume that if A were an efficient administrator, he could acquire all the land and earn $q+m$ and give A $q+0.1$. Trivially, the Proviso would be satisfied. The problem arises when we consider B acquiring the land, and he is so efficient an administrator that if A works for him, he can pay A $q+m$ and himself $q+2m$. Now, Nozick's proviso would clearly generate large inequalities due to self-ownership. The problem is two-fold: (i) the self-ownership account combined with Nozick's proviso results in an arbitrary first-come-first-serve principle of justice, and (ii) the self-ownership account combined with Nozick's proviso allows for pareto inferior distributions simply because of first-come-first-serve. So, the self-ownership idea has prima facie implausibility.

Now, I think there are a few problems with this argument. The implausibility generated by this account likely stems from Nozick's proviso instead of the self-ownership principle (Cohen admits this). The second arises from the fact that Cohen thinks that any arrangement with any principle of initial acquisition save for a stringent scheme of joint ownership that hollows out any substantive right to self-ownership and property would result in inequality, and that this poses a

problem for self-ownership. However, at least on Nozick's account, the resulting inequality cannot pose a problem for self-ownership, given the assumed lexical priority of self-ownership over equality. Equality must be shown to have a deeper and richer value than self-ownership, which seems *prima facie* implausible, due to the great intuitive strength of owning one's own body and mind, and the fact that complete distributive equality is itself controversial. This second deeper problem highlights how the statement that the mere fact that equality conflicts with self-ownership makes it worse for self-ownership depends on the priority of equality over self-ownership, which I think one would be hard-pressed to find. And furthermore, that if self-ownership has a problem, the problem is independent of concerns about equality.

Left-libertarianism and a revised proviso

Now, I am going to assess a candidate argument by Otsuka, that it is plausible to generate an equal distribution through specifying a proviso founded on egalitarian principles that accompanies self-ownership. Otsuka specifies his proviso as follows: one is entitled to have as large a share of initial resources up to the point where everyone else is able to obtain an (in an opportunity for welfare sense) equally advantageous share of resources. He then shows that, as a matter of contingent fact, that if individuals have heterogeneous preferences and those who are better off would want goods that are beyond subsistence, then if we allocate those who are better off access to the agricultural landscape and those who are disabled access to the seafont, they would voluntarily trade towards equality. The immediate problem for Otsuka is whether his welfarist specification is the right specification given that he has to fend off the problem of expensive tastes. It does not seem quite right to licence someone with extremely expensive tastes of growing cows much more of the land and water than someone who is only intent on growing rice because of their comparative tastes. But this is not a deep objection to Otsuka given that he has shown that, at least on the account of equality in welfarist terms, equality and self-ownership do not conflict. A deeper problem, I think, arises when we consider the considerations that go behind 'an equally advantageous share' in terms of opportunity for welfare. Consider the

individuals with differentiated talents and endowment would have a greater opportunity for welfare. Accordingly, the egalitarian proviso distributes the initial resources in a way that is inversely related to one's natural endowments. This seems reminiscent of a Dworkin-esque insurance scheme against natural contingencies. This immediately warrants a libertarian objection because Nozick accuses this method of redistributing to adjust for one's natural contingencies as treating the individual endowment as a 'common asset' which in turn violates the separateness of persons that underpins self-ownership. In this subtle way, Otsuka has not really shown that equality and self-ownership do not deconflict. This problem, I contend, is more general. Either egalitarian provisos merely distribute resources equally (like Steiner) which still results in inequality due to differentiated talents, or they distribute the initial resources in a way that adjusts for the differentiated talent through initial resources and thereby treats the natural assets as if they were a common stock, violating the separateness of persons. This is why Cohen thinks that no arrangement of prior distribution other than a stringent public ownership scheme is compatible with self-ownership and stringent property rights.

Redefining self-ownership

I think that the best way to reconcile self-ownership and equality is in re-examining the idea of self-ownership, and its relation with voluntariness. We see that Nozick justifies the principle of just transfer on the intuitiveness of that voluntary movements from distribution 1 to distribution 2 are just. This intuitiveness is captured by the idea of self-ownership -- that I can do with my property anything I want. Yet, as Wolff observes, Nozick uses a very unintuitive version of voluntariness. Nozick identifies two ways in which a transaction is involuntary: (i) that it reduces the number of options I have and (ii) that the constraining act itself violates my right to self-ownership. Notice that what Nozick licences with such a definition of voluntariness is that the 'propertyless proletariat' can engage in voluntary transactions because he remains self-owning (i.e. no one takes away what he owns), even though the quality of his options are simply dismal (i.e. he can be made to work at an extremely dismal wage rate

because he has no other option). Yet, in what way is the propertyless proletariat not actually able to make voluntary actions? I draw an analogy with Joshua Cohen's analysis of democracy -- that the reason why the change of preferences in a deliberative democracy is precisely because it is reflected upon and consistent with autonomy. However, we see that the propertyless proletariat, though faced with constraints, are faced with the intensity of constraints that renders his actions not autonomous -- this makes sense of Waldron's observation that the homeless are comprehensively unfree. What this implies is that Nozick's conception of self-ownership is thoroughly impoverished because it fails to capture a sense of autonomy and genuine self-direction. In fact this sense of autonomy and genuine self-direction emerges precisely from his very own Kantian basis. The reason why we ought to regard individuals as 'ends in themselves' is because of their status as discursive and responsible beings, accountable to the moral standards they hold themselves to. Kant's conception of a person, which Nozick binds his idea of self-ownership to, instantiates a much more substantive notion of self-ownership compared to Nozick's formal property rights. G. A. Cohen points out how Nozick's property rights can be formally but not meaningfully satisfied -- I can have property rights in that no one can take my property, but this is consistent with my having no property. Obviously, this fails to capture what self-ownership means, which I suggest to be one of autonomy and genuine self-direction in the republican sense of being free from domination.

What does this imply for equality and self-ownership? It suggests that for an individual to be self-owning in a substantive sense, and thus capable of making voluntary transactions under the principle of just transfer, certain conditions must be secured -- conditions that I suggest are akin to Anderson's own conditions for relational equality. For someone to be able to be substantively self-owning and thus capable of voluntary transactions, he must be able to have relevant capacities to participate in civic life. Fundamentally, he must stand in equal relation with other transactors. This entails that some sort of minimal redistribution needs to take place in order to sustain an environment whereby people actually voluntarily make transactions and thus remain self-owning. It is through the transformation of the principle of self-ownership -- one more

recognisable in form and coherent with its own Kantian basis -- that we realise that relational equality underwrites self-ownership. Without standing in equal relation to others, I am able to be exploited (even if my formal property rights are respected), and I cannot therefore be said to be 'self-owning'. Self-ownership, therefore, implies the relational equality that Anderson advocates for. Therefore, the Right Libertarian too narrowly construes what equality is, and mistakes what self-ownership actually is and hence is wrong that equality and self-ownership actually conflict.

Conclusion

I conclude that self-ownership and equality are not actually in conflict (and so the Right Libertarians are wrong), once we properly conceive of self-ownership and broaden our conception of what equality could include. I do not make any justification for why we prefer relational equality over distributive equality since my argument simply aims to show that it is possible to reconcile equality of some form and self-ownership, properly conceived. I ultimately contend that my argument is stronger than Otsuka's kind of argument, because it (i) does not rely on mere contingent fact as Otsuka does and (ii) transforms the self-ownership principle into something more intuitive and coherent.

Words: 2003

Answered.